

TOWN OF NORTH CASTLE

ZONING BOARD OF APPEALS

15 Bedford Road, Armonk, NY 10504

September 7, 2023 7:30 P.M.

ZONING BOARD MEMBERS:

**Joseph Monticelli, Chairman
John L. Stipo
Robert Greer
Scott Stopnik**

ALSO PRESENT:

**Gerald Reilly, Esq. Town Counsel
Rob Melillo, Building Insp.
Lori J. Zawacki, Secretary**

The meeting was called to order at 7:30 p.m. Chairman Monticelli asked for a roll call. All members present.

Approval of Minutes

Bob Greer made a motion to accept the minutes of July 6, 2023 and the motion was seconded by Scott Stopnik.

The Chairman called for the first application and the public hearing was opened.

868 North Broadway LLC, 868 North Broadway, N. White Plains, NY 10603 and known on the Town Tax Assessment Maps as Section 122.12, Block 5, Lot 63 and located in a CB Zoning District. In order to permit the construction of a 4300 sq. ft. retail building and various retaining walls, the applicant requests the following variances which were previously granted on April 4, 2019, and have since expired.

- 1. A front yard variance where 0.5 ft. of front yard setback is proposed and where 10 ft. is required pursuant to CB regulations within Section 355-22 of the Town Code.***
- 2. The site requires the provisions of 22 off-street parking spaces pursuant to Section 355-57 of the Town Code, but only 13 off-street parking spaces are proposed.***

The application was represented by P. Daniel Hollis, Esq.

Mr. Hollis stated his client is here before the Board due to the fact the time ran out on the clock trying to get a building permit. The plans have been reviewed and they ran into engineering issues which caused the delay. If approved this evening they will go back before the Planning Board to get the site plan approval renewed as well and get the building permit. Nothing has changed since the approval of April 4, 2019. I will answer any questions that you may have.

Mr. Greer asked if it would remain the same concept for the intended use when the project was completed?

Mr. Hollis stated a requirement of the resolution previously granted was for a single user and that will remain in effect. There is no tenant at this time.

Mr. Stopnik stated this application basically mirrors the application we previously voted on.

Mr. Hollis stated yes, it is a clone of that application.

Chairman Monticelli asked if anyone from the Public had any comments or questions.

There were none and the Secretary received no correspondence concerning this application.

The public hearing was closed.

Mr. Reilly stated that the findings were made previously and when there was an alleged substantial variance it was mitigated by the fact of the uniqueness of the property. Also found previously, there was no impact on the neighborhood and the alternative does not exist. The Planning Board is ready to approve this and will eliminate an eyesore on North Broadway. For all the reasons you previously visited, I suggest someone make a motion to approve the variances.

Mr. Greer made the motion to approve the variances.

The motion was seconded by Scott Stopnik.

Roll call by the Secretary: Scott Stopnik – Yes, Bob Greer – Yes, John Stipo – Yes and Joseph Monticelli – Yes. The variances were granted by a unanimous vote of 4-0.

The Chairman called for the next application and the Public Hearing was opened.

HOTT BLOWDRY, regarding premises at 450 Main Street, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.01, block 6, Lot 22 and located in the CB Zoning District. In order to obtain site plan approval, the applicant will need the following variance:

Pursuant to Section 355-57 of the Town Code the required number of off-street parking spaces is 173, where 160 are provided needing a variance of 13 off-street parking spaces.

This application was represented by Chris Crocco, Architect for the project. The applicant was also present.

Mr. Crocco stated that the applicant currently has a space in Armonk Square for quite some time and her business has grown and she is looking to expand to a bigger place. In the current space it was deemed the use to be retail, which is 1 space per 200, however the fact that it is a hair salon even though no cutting is done, only blow dries, it is now deemed a salon and the calculation is 1 per 100 which gives us the deficiency of 13 spaces. We did a parking study from Tuesday through Friday and the amount of cars in the lot at most, was 79 cars at 1:00p.m. and there was still more than half of the entire lot open. We do not feel parking to be an issue at all. I will answer any questions you may have.

The Chairman asked the Public if there was anyone with comments or questions.

There were none.

The Public Hearing was closed.

Mr. Reilly stated this is a CVS location and 13 out of 173 would be considered de minimis. There has been no negative response from anyone and it will not change the character of the neighborhood and the alternative is since it is considered a salon the parking is required and this seems to be due more to the statute than the applicant.

Mr. Stopnik stated I see no negative impact at all for the other tenants or neighbors and no one provided any issue with this. For the reasons already stated, I make the motion to approve the variance.

The motion was 2nd by Bob Greer.

Roll call by the Secretary: Scott Stopnik – Yes, Bob Greer – Yes, John Stipo – Yes, and Joseph Monticelli – Yes. The variance was granted by a unanimous vote of 4-0.

The Chairman called for the next application and the Public Hearing was opened.

REMIX PROPERTIES, LLC, 12 Maple Avenue, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.01, Block 6, Lot 26 and located in a CB-A2 Zoning District. In order to obtain a site plan approval, the applicant will need the following variance:

Pursuant to Section 355-57 of the Town Code, 48 off-street parking spaces are required where 15 are provided, needing a variance of 33 off-street parking spaces.

This application was represented by Anthony Veneziano, Esq.

Mr. Veneziano stated this is a new project to rehabilitate the building at 12 Maple Avenue. My client is under contract for the building. My firm represented the current owner and we worked with Adam Kaufman, Director of Planning to prepare retail on the floor with office above and residential. Nothing ever worked as it is too small at only .32 acres. It requires 48 parking spaces for a 144 seat restaurant. We have a letter of intent with 20 Maple Avenue. On our site we can park 15 spaces and on that site we can park 22 spaces before we valet and stack. After valet and staking the 15 becomes 23 and the 22 becomes 33. So worse case we are about 10 or 11 spaces short. After stacking we have more than what is needed. We spoke with the CVS property owners who were not interested at that time. We told them we thought people might park there for convenience but I feel they were preoccupied with the previous application. Maybe we can approach them in the future.

The benefit of granting the variance helps the present owner who has been stuck for 10 to 12 years as well as my client who would like to buy and put in a restaurant which would generate taxes. The entire area is commercial and retail so there will be no impact on the hamlet. The CVS is right behind us with 3000 sq. ft. and 160 spaces, so no impact there. We have a Town study and our own study. There is no other method to get this but through a variance. It is not substantial when you take into consideration we mitigated a lease with the neighbor. We do not think there will be any impacts on the physical or environmental conditions of the area. I have a letter from August 13th 2023 to make a part of the record.

Stefan Martinovic made a short presentation about the restaurant "Hemlock Hills" which he is proposing to open on the 12 Maple Avenue property and described details about the preparation of food, where its farmed, he is a resident of Armonk and how he thought it would benefit the area. He went over the parking situation. He stated that he has more parking available within a 3 minute walk than any other restaurant in Armonk, including his lot the neighboring lot and public parking. He discussed foot traffic and neighboring restaurant peak hours all going back to the same statement of more than enough parking for every business. He spoke of lunch customers perhaps coming in and since they were local visiting other establishments in the immediate area.

Mr. Stopnik asked about the brunch hours on weekends.

Mr. Martinovic went on to mention the Armonk Square lot and how they wouldn't even have to use it with their plan of valet and stacking on the property. He stated all businesses in the area have parking vacancies and how the staff will car pool and park far away on Old Rte. 22 near Birdsall Drive. He has a petition with over 500 signatures in favor of granting the variance.

The Chairman asked if there were any questions or comments from the Public.

Mr. Alan Zaretsky, a developer of Armonk Square, the property across the street stated he wished the project well, but was majorly concerned about the over flow that would end up in Armonk Square parking lots. It will directly affect the restaurant Fortina and other merchants in the area. He stated the hours for Fortina and De Ciccios and went on to say people will park in that lot and walk over to the Maple Avenue location. It is the easiest way to go. It will also add to the costs of maintaining the Square parking lots. The Town is only responsible for policing it

and will they have someone there to make sure my people are not infringed upon. There will be additional liability for any claims. He stated all these factors must be considered and it is not fair for all of the burden to be placed on the Armonk Square owners. Even if we say no parking there for that restaurant, people will do it anyway and who will enforce it? I don't want to be a bad neighbor but all these factors need to be taken into consideration. Maybe the project needs to be altered or downsized to accommodate their available parking. I have no issue with the restaurant itself.

Mr. Stopnik asked if Mr. Zaretsky and Mr. Martinovic had met before to discuss these issues.

Mr. Zaretsky stated I never met this gentleman before. I came when I got the notice.

Mr. Greer stated I did my own little test on Tuesday evening and tonight as well while CVS was still open. On Tuesday night around 6:45 p.m. I counted in the CVS parking area only not the other tenants over there, 72 empty parking spaces. Tonight, I counted 69 spaces not including the 20 spaces at 20 Maple Avenue. I understand your concern, but there are spaces close to him, but the question is how he can create a situation to make sure his people park over at CVS and not at the Armonk Square.

Mr. Zaretsky stated that is a good thought, however, is that people in general are going to park in the nearest spot. The biggest complaint we have is that there is not enough parking regardless of what all these studies say. Its human nature.

Mr. Greer stated that if they are going to have valet parking, people will just drive up and get out of their cars.

Mr. Zaretsky stated that you will be surprised how many people will not use valet parking to avoid a tip and also since COVID how many people don't want strangers in their car.

Mr. Veneziano stated I was Mr. Zaretsky's counsel for Armonk Square, but I think he is dead wrong on the situation with the CVS parking lot. He spoke of a sidewalk leading to CVS from their property on Maple Avenue. He feels there will be no extra exposure for Armonk Square.

There was a short discussion on availability of parking and how people in Armonk like to park close to their destination. Different scenarios were brought up by Mr. Zaretsky, Mr. Veneziano and Mr. Greer once again spoke of valet parking. Once again, all the public parking in the vicinity was going over and the subject of valet being a factor in opening the restaurant and how high operating costs could be placed on Mr. Zaretsky

Mr. Reilly stated that he needed to address an issue. The applicant brought a traffic study dated July 10, 2023 and then made an application to the ZBA. The Planning Board called for a traffic study as well and they responded two weeks after the application came in. I have talked to the Chairman, Adam Kaufman, and Mr. Baroni about this and it should be considered before any vote takes place that the Planning Board be able to review the Kimberly Horn parking study with the applicant. After they review they will respond back to this Board as there were some issues

the Planning Board's expert had with the applicant's study. This is a Planning Board referral. That is my suggestion.

Chairman Monticelli stated this application will be adjourned for that reason.

Mr. Veneziano stated we will talk to that reason and then you can make your decision. Our traffic analysis will address it. We have to go back to Planning Board anyway.

Mr. Reilly stated the issue is that the Board has not had time to hear this traffic study. We will hear from you now.

John Canning, P. E. stated that this is a restaurant in a downtown location and restaurants peak in the evening. In the middle of the day most of them are already there and not driving but walking. He addressed the Town study issue of 2 p.m. parking is the busiest. There should be no parking on private property or public areas. During the evening hours there is plenty of parking. He went over the Town's parking study and once again the valet and parking on Maple Avenue. He stated they can definitely comply with the code without impacting the neighbors. He stated the study shows only a fraction of the customers in the afternoon and the parking can be accommodated. He discussed the methodology the Traffic expert used the number of seats for parking required. The red zone was between 12 and 1 o'clock p.m. on a weekday. He feels the applicant can demonstrate they can accommodate all the parking requirements at those times. He feels the data provided shows the applicant can comply with the parking requirements.

Mr. Reilly stated that you should consider this when you have time to review, but you also have an expert that was hired by the Town and should be reviewed by the Planning Board and it does not mean it will change your opinion. They have never seen or discussed this study. They will consider this at their next meeting and get back to you and they can come back here with a referral from the Planning Board and be heard then. This should be kept open until they have seen this.

Scott Stopnik made a motion to adjourn this matter to the next meeting so that we may consider the Planning Board's discussions and findings.

The motion was 2nd by Bob Greer.

Roll call by the Secretary

Mr. Zaretsky stated that he would be willing to meet with the applicant.

Mr. Stipo asked if the Armonk Square was in a parking district

Mr. Zaretsky stated yes, but it was his responsibility to maintain it but the Town enforces the regulations on who can park there.

Mr. Stopnik asked who insures the parking lot.

Mr. Zaretsky stated that his LLC does and he is responsible for snow removal, ice, incidents, etc.

Member of the Public, Kathy Blaney, who has lived in Armonk since 1971 and now in Armonk Square for the past 9 years, stated that Armonk Square is a wonderful place for its tenants and the owners have made it a treasure and the Town has the responsibility to see it be kept the way it is and not let others infringe upon the tenants that live there.

Bob Greer made a motion to adjourn the meeting and Scott Stopnik 2nd the motion.

Respectfully submitted,

Lori J. Zawacki